

WARRANT IN DETINUE – SMALL CLAIMS DIVISION
(CIVIL CLAIM FOR SPECIFIC PERSONAL PROPERTY)

Commonwealth of Virginia VA. CODE §§ 16.1-79; 16.1-122.3

RICHMOND CITY General District Court
NORTH 9TH STREET RICHMOND VA 23219
STREET ADDRESS OF COURT

TO ANY AUTHORIZED OFFICER: You are commanded to summon the Defendant(s).
TO THE DEFENDANT(S): You are summoned to appear before this Court at the above address on
to answer the Plaintiff(s)’ claim (see below).
RETURN DATE AND TIME

DATE ISSUED [] CLERK [] DEPUTY CLERK [] MAGISTRATE

CLAIM: Plaintiff(s) claim the item(s) below to be unjustly withheld from Plaintiff’s possession by Defendant(s).

Table with 4 columns: ITEM, ALTERNATE VALUE, ITEM, ALTERNATE VALUE. Row 1: 1. TITLE FOR JX35, \$1.00, 4., . Row 2: 2., . Row 3: 3., . Row 4: \$ 1.00 TOTAL ALTERNATE VALUE, \$ DAMAGES CLAIMED DUE TO UNJUST DETENTION, \$ COSTS, .

Plaintiffs seek possession of the items listed above, or their alternative values, damages resulting from the unjust detention of the items by Defendant(s) as indicated. The alternate values given are based upon [] actual value [or] [x] amount due on written contract of sale which the items were offered as security.

THE BASIS OF CLAIM IS: [x] WRITTEN CONTRACT OF SALE [] OTHER (EXPLAIN) PLAINTIFF SEEKS \$1.00
IN NOMINAL DAMAGES AND A FACTUAL FINDING

HOMESTEAD EXEMPTION WAIVED? [] YES [] NO [] CANNOT BE DEMANDED

DATE [] PLAINTIFF [] PLAINTIFF’S EMPLOYEE

[] JUDGMENT that Plaintiff(s) recover against [] named Defendant(s) [] possession of each item listed above, or its alternate value as shown above, at the election of [] Plaintiff(s) [or] [] Defendant(s), (if made within days, then at election of Plaintiff), with the exception of the following item nos. (\$ Total Alternate Value Recoverable): \$ damages with interest: , \$ costs.

HOMESTEAD EXEMPTION WAIVED: [] YES [] NO [] CANNOT BE DEMANDED

[] JUDGMENT FOR [] NAMED DEFENDANT(S) []

[] NON-SUIT [] DISMISSED

DEFENDANT(S) PRESENT? [] YES [] NO

DATE JUDGE

RETURN DATE CASE NO.

LAST NAME, FIRST NAME
PLAINTIFF(S) (LAST NAME, FIRST NAME, MIDDLE INITIAL)
123 FREE STREET
RICHMOND, VA 23235
CELL PHONE NUMBER

v.
CORPORATION NAME, (ADD R.A.)
DEFENDANT(S) (LAST NAME, FIRST NAME, MIDDLE INITIAL)
ADD THEIR MAILING ADDRESS
DOUBLE CHECK YOUR SOS BUSINESS
FILING OFFICE

WARRANT IN DETINUE – SMALL CLAIMS DIVISION

TO DEFENDANT: You are not required to appear; however, if you fail to appear, judgment may be entered against you. By law, this case must be tried on the return date above unless all parties agree upon a different date for trial. Other continuances shall be granted by the court only for good cause shown.

Grounds of Defense ORDERED DUE

Transfer to Another Locality: If the Defendant believes that Plaintiff(s) should have filed this suit in a different city or county, you may file a written request to have the case moved for trial to the general district court of that city or county. To do so, you must do the following:

1. Prepare a written request which contains (a) this court's name, (b) the case number and the "return date" as shown on the other side of this form in the top right corner, (c) Plaintiff(s)' name(s) and Defendant(s)' name(s), (d) "I move to object to venue of this case in this court because" and state the reasons for your objection and also state in which city or county the case should be tried, and (e) your signature and mailing address.
2. File the written request in the clerk's office before the trial date (use the mail at your own risk) or give it to the judge when your case is called on the return date. Also send or deliver a copy to plaintiff.
3. If mailed to the court, you will be notified of the judge's decision.

NAME	
ADDRESS	
☐ PERSONAL SERVICE	Tel. No.
☐ Being unable to make personal service, a copy was delivered in the following manner: ☐ Delivered to family member (not temporary sojourner or guest) age 16 or older at usual place of abode of party named above after giving information of its purport. List name, age of recipient, and relation of recipient to party named above. ☐ Posted on front door or such other door as appears to be the main entrance of usual place of abode, address listed above. (Other authorized recipient not found.) ☐ Served on Secretary of the Commonwealth ☐ Served on Clerk of the State Corporation Commission.	
☐ NOT FOUND	_____
SERVING OFFICER	
..... DATE	for _____

NAME	
ADDRESS	
☐ PERSONAL SERVICE	Tel. No.
☐ Being unable to make personal service, a copy was delivered in the following manner: ☐ Delivered to family member (not temporary sojourner or guest) age 16 or older at usual place of abode of party named above after giving information of its purport. List name, age of recipient, and relation of recipient to party named above. ☐ Posted on front door or such other door as appears to be the main entrance of usual place of abode, address listed above. (Other authorized recipient not found.) ☐ Served on Secretary of the Commonwealth ☐ Served on Clerk of the State Corporation Commission.	
☐ NOT FOUND	_____
SERVING OFFICER	
..... DATE	for _____

REMOVAL TO GENERAL DISTRICT COURT

I, the undersigned defendant, am exercising my right to remove this case to the general district court of this jurisdiction by signing and giving this notice to this court before the case is decided.

.....
DATE

☐ DEFENDANT ☐ ATTORNEY FOR DEFENDANT

☐ oral ☐ written notice of removal has been received this day in this small claims division.

.....
DATE

☐ CLERK ☐ JUDGE

I certify that I mailed a copy of this document to the defendants named therein at the address shown therein on

.....
DATE

☐ Plaintiff
☐ Plaintiff's Employee